

Court No. - 39

Case :- CRIMINAL MISC. WRIT PETITION No. - 10381 of 2014

Petitioner :- Mam Chand

Respondent :- State Of U.P.And 3 Others

Counsel for Petitioner :- A.K.S.Bais

Counsel for Respondent :- Govt.Advocate

Hon'ble V.K. Shukla,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner, learned Additional Government Advocate for the State and Sri Nipendra Mishra, learned advocate, for the respondent no. 4.

Petitioner has approached this Court with a request to quash the First Information Report dated 5.5.2014, registered as Case Crime No. 71 of 2014, under Section 135 of Electricity Act, Police Station Bargaon, District Saharanpur.

Learned counsel for the petitioner is contending before this Court that no offence under section 135 of Electricity Act is made out against the petitioner, and even otherwise same is compoundable.

The request made by the petitioner has been resisted by learned AGA as well as learned counsel for the complainant who submits that offence has been committed and compounding, if any, is governed under the provisions of the U.P. Electricity Supply Code, 2005, as such petitioner should invoke the said remedy.

This Court has the occasion to peruse the FIR in question and prima-facie perusal of the same does reflect disclosure of cognizable offence, in view of this, no case for interference is made out.

However, petitioner may seek remedy as is provided for under the Electricity Supply Code, 2005.

The writ petition stands disposed of.

Order Date :- 19.6.2014

Puspendra